

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Squad #05	CCRB Case #: 201807878	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/25/2018 8:00 PM	Location of Incident: Boerum Street and Bushwick Avenue; 90th Precinct stationhouse; over the phone	18 Mo. SOL 2/25/2020	Precinct: 90
Date/Time CV Reported Sun, 09/09/2018 3:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/24/2018 11:09 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Piselli	31215	946110	090 PCT
2. LT Timothy Fox	00000	944571	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Arias	00329	941359	090 PCT
2. POM Dev Sharma	17972	961281	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Timothy Fox	Abuse: At Boerum Street and Bushwick Avenue in Brooklyn, Lieutenant Timothy Fox stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Vincent Piselli	Abuse: At Boerum Street and Bushwick Avenue in Brooklyn, Police Vincent Piselli stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Vincent Piselli	Discourtesy: At Boerum Street and Bushwick Avenue in Brooklyn, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Vincent Piselli	Discourtesy: At the 90th Precinct stationhouse, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . POM Vincent Piselli	Discourtesy: Over the phone, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Vincent Piselli	Discourtesy: At the 90th Precinct stationhouse, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)	F . Unsubstantiated

Case Summary

On September 9, 2018, § 87(2)(b) filed this complaint over the phone with IAB, generating original log #18-35395. IAB forwarded this complaint to the CCRB where it was received on September 24, 2018.

On August 25, 2018, at approximately 8:30 p.m., § 87(2)(b) was driving at the intersection of Boerum Street and Bushwick Avenue in Brooklyn when he was stopped by Lieutenant Timothy Fox and Police Officer Vincent Piselli from the 90th Precinct (**Allegations A-B: Abuse of Authority, unsubstantiated**). PO Piselli told § 87(2)(b) that he was stopped for driving with unregistered license plates, which § 87(2)(b) denied. PO Piselli placed § 87(2)(b) under arrest because he was unable to provide the vehicle's registration. In the NYPD vehicle, PO Piselli allegedly said to § 87(2)(b) "Are you fucking kidding me?" (**Allegation C: Discourtesy, unsubstantiated**). At the stationhouse, PO Piselli allegedly cursed at § 87(2)(b) again because § 87(2)(b) § 87(2)(b)'s girlfriend, was repeatedly calling his cell phone (**Allegation D: Discourtesy, unsubstantiated**). PO Piselli allegedly answered § 87(2)(b)'s cell phone and told § 87(2)(b) "Stop fucking calling" (**Allegation E: Discourtesy, unsubstantiated**). When § 87(2)(b) was released from the stationhouse, PO Piselli allegedly cursed at him again (**Allegation F: Discourtesy, unsubstantiated**). § 87(2)(b) received a summons for § 87(2)(b) (BR16).

The investigation obtained body-worn camera video from PO Arias taken at the scene of the vehicle stop (BR05). The video did not capture the periods of the alleged misconduct.

Findings and Recommendations

Allegation (A) Abuse of Authority: At Boerum Street and Bushwick Avenue in Brooklyn, Lieutenant Timothy Fox stopped the vehicle in which § 87(2)(b) was an occupant.
Allegation (B) Abuse of Authority: At Boerum Street and Bushwick Avenue in Brooklyn, Police Officer Vincent Piselli stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that he was driving his brother's car, a white Nissan Maxima with Pennsylvania license plates, when he was stopped by Lt. Fox and PO Piselli (BR01). § 87(2)(b) did not provide additional details about the vehicle.

PO Piselli recounted that he was driving with Lt. Fox when he observed § 87(2)(b)'s vehicle in violation of having windows tinted beyond the legal limit (BR02). PO Piselli did not provide additional information about his observations of the vehicle or if it was committing any other violations. PO Piselli pulled over the vehicle. Before approaching the vehicle, PO Piselli checked the license plate number and found that it did not match the make and model of § 87(2)(b)'s vehicle.

Lt. Fox testified that while he was in the vehicle with PO Piselli, he observed § 87(2)(b)'s vehicle committing a traffic violation (BR04). However, Lt. Fox could not recall the specific violation. Lt. Fox did not recall having any conversation with § 87(2)(b) during the stop, but he recalled that § 87(2)(b) was unable to provide the vehicle's registration. Lt. Fox was unable

to find any registration information for the license plate. Lt. Fox decided to place § 87(2)(b) under arrest in order to perform further investigation at the stationhouse, as he suspected that the license plate may have been fraudulent.

The body-worn camera video shows § 87(2)(b)'s vehicle at the scene of the stop but does not show the beginning of the stop (BR05). It is unclear from the video whether the windows on § 87(2)(b)'s vehicle were illegally tinted.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A-B** be closed as **unsubstantiated**.

Allegation (C) Discourtesy: At Boerum Street and Bushwick Avenue, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that as he rode in the backseat of the NYPD vehicle on the way to the stationhouse, he asked PO Piselli what the officers thought his license plate number was (BR01). PO Piselli replied, "Are you fucking kidding me? You don't know your plate number?" PO Piselli was in the driver seat of the vehicle and Lt. Fox was in the front passenger seat at the time. There were no other officers in the vehicle.

PO Piselli confirmed that he transported § 87(2)(b) to the stationhouse. However, he could not recall if he had any conversation in the vehicle with § 87(2)(b) and he could not recall if he used profanity toward § 87(2)(b) (BR02). PO Piselli believed Lt. Fox was in the front passenger seat at the time, but he could not recall with certainty.

Lt. Fox testified that he did not recall if he was in the vehicle with PO Piselli and § 87(2)(b) (BR04). Lt. Fox did not recall any conversation between PO Piselli and § 87(2)(b). Lt. Fox did not recall if PO Piselli used profanity toward § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Discourtesy: At the 90th Precinct stationhouse, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that he was taken to the 90th Precinct stationhouse and placed in the cell area (BR01). PO Piselli confiscated his belongings and had § 87(2)(b) take off his shoes. PO Piselli was standing about four or five feet away and holding § 87(2)(b)'s cell phone. § 87(2)(b) began to call § 87(2)(b) on his cell phone repeatedly, and § 87(2)(b) saw PO Piselli decline the call each time. PO Piselli said to § 87(2)(b) "How the fuck does she keep calling you that much?" § 87(2)(b) knew that § 87(2)(b) was the caller because of the personalized ringtone and because he could see the phone's screen. There was another officer and prisoner in the cell area at this time.

§ 87(2)(b) testified that she called § 87(2)(b) approximately 30 times on the night of the incident (BR06).

§ 87(2)(b) provided a screenshot from his cell phone showing his calls from § 87(2)(b) as § 87(2)(b) (BR07). The photo shows ten calls between 9:32 p.m. and 10:16 p.m. The photo did not include the date on which the calls were received or the caller's phone number, and it appeared to be a portion of a longer list of calls.

The investigation identified § 87(2)(b) as the arrestee who was in the 90th Precinct cells with § 87(2)(b) at the time of incident. § 87(2)(b) stated that he was in the cells when § 87(2)(b) arrived at the stationhouse and remained in the cells after § 87(2)(b) left. § 87(2)(b) recalled two officers being in the cell area at the time. § 87(2)(b) did not hear any officers using profanity toward any individuals in the cell area (BR09).

PO Piselli stated that he brought § 87(2)(b) back to the stationhouse and lodged him in the cells (BR). PO Piselli did not recall how he processed § 87(2)(b)'s arrest. PO Piselli did not recall if § 87(2)(b) had a cell phone with him or if he had any other personal property. PO Piselli did not recall if § 87(2)(b)'s phone rang during arrest processing. PO Piselli did not recall if he used profanity toward § 87(2)(b). At one point during § 87(2)(b)'s custody, Police Officer Jonathan Arias of the 90th Precinct spoke with § 87(2)(b) in a separate room from the cell area. PO Arias told PO Piselli about the conversation afterward, but PO Piselli did not recall what was said.

PO Arias testified that § 87(2)(b) was taken to the "Radio Room," a small interview room with a few chairs (BR03). PO Arias did not believe § 87(2)(b) was lodged in the cell area at any point while he was in custody. PO Piselli spoke to § 87(2)(b) in the Radio Room. PO Arias was present in the radio room translating the conversation into Spanish for § 87(2)(b). PO Arias did not recall if § 87(2)(b) had a cell phone with him and did not recall if it rang. PO Arias did not recall PO Piselli using profanity toward § 87(2)(b).

Lt. Fox stated that PO Piselli lodged § 87(2)(b) in the holding cells of the stationhouse (BR04). Lt. Fox was at the main desk and did not enter the holding cell area. Then PO Piselli left the cell area to ask Lt. Fox at the desk if he had additional information about § 87(2)(b)'s vehicle. Lt. Fox did not know if § 87(2)(b) had a cell phone. Lt. Fox did not know if § 87(2)(b) received any phone calls. Lt. Fox did not hear PO Piselli using profanity toward § 87(2)(b).

Police Officer Dev Sharma of the 90th Precinct confirmed that he was working as the cell attendant on the incident date, but he had no recollection of § 87(2)(b) or of this incident (BR08). PO Sharma noted that cell phones frequently ring in the cell area, but he did not specifically recall any cell phones ringing on this date.

§ 87(2)(g)
Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation (E) Discourtesy: Over the phone, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that on the incident date she called § 87(2)(b) multiple times on his cell phone (BR06). On the seventh or eighth call, an officer answered the phone and said, “Stop fucking calling.” The officer hung up the call and did not identify himself. § 87(2)(b) called again. The call was answered, but no one spoke for approximately 11 minutes. § 87(2)(b) stated that she could hear officers talking in the background.

§ 87(2)(b) testified that he did not witness an officer answer his cell phone (BR01). After § 87(2)(b) was released from custody, § 87(2)(b) told § 87(2)(b) that an officer answered § 87(2)(b) s phone and cursed at her.

The photo of § 87(2)(b) s call log shows that, of the ten phone calls received from § 87(2)(b) the first three calls were rejected and the next three were answered (BR07). At 9:42 p.m., two calls were received and lasted for three and two seconds, respectively. The third answered call, at 9:44 p.m., lasted for 11 minutes and 27 seconds. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that he did not recall hearing any cell phones ringing while he was in the stationhouse cells (BR09). § 87(2)(b) was unaware if § 87(2)(b) called § 87(2)(b) s phone. As previously noted, § 87(2)(b) denied hearing any officers using profanity in the cell area.

PO Piselli testified that he did not know if § 87(2)(b) had a cell phone at the time of incident (BR02). PO Piselli did not recall if any officer used profanity over the phone to § 87(2)(b) PO Piselli stated that the standard procedure is for the arresting officer to guard the prisoner’s property and that no other officer would have access to said property.

PO Arias stated that he did not know if § 87(2)(b) called § 87(2)(b) (BR03). PO Arias did not recall any officers using profanity over the phone. PO Arias stated that only the arresting officer would have access to an arrestee’s belongings.

PO Sharma did not witness any officer answer a prisoner’s cell phone on this date (BR08). PO Sharma did not witness PO Piselli using profanity over the phone. PO Sharma stated that he would remember witnessing an officer answering a prisoner’s phone because of the uniqueness of that situation. PO Sharma stated that the arresting officer is responsible for a prisoner’s belongings and that no other officer would have access.

Lt. Fox testified that he was not in the cell area at this time, and therefore is not a witness to this allegation (BR04).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation (F) Discourtesy: At the 90th Precinct stationhouse, Police Officer Vincent Piselli spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that, while standing on the steps outside the stationhouse after his release, he asked PO Piselli about his license plate which had been confiscated (BR01). PO Piselli replied, “Are you fucking kidding me? I’m giving you a chance. How can you ask that question? I’m just giving you a summons for no registration.” PO Arias was standing next to PO Piselli at the time.

PO Piselli testified that § 87(2)(b) asked generally about his license plate upon his release (BR02). PO Piselli did not recall the specifically what § 87(2)(b) asked or how he responded. PO Piselli did not recall if he used profanity toward § 87(2)(b).

PO Arias and Lt. Fox each testified that they were not present when PO Piselli released § 87(2)(b) from the stationhouse and did not observe any conversation between PO Piselli and § 87(2)(b) at that time (BR03, BR04).

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) or § 87(2)(b) has been a party (BR10).
- Police Officer Vincent Piselli has been a member of service for 11 years and has been a subject in seven CCRB complaints and 13 allegations, none of which was substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of April 4, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR14).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date